

Cal.App.4th 993, 999.) The Court also finds that the burden that Plaintiff seeks to place on Defendant, of redacting all “sensitive personal/private information” is undue in the context of Plaintiff’s failure to make a factual showing of the relevance of such documents (outside of the category identified herein above.)

Request for Production No. 27. GRANTED. The Court finds that the documents requested are relevant to the action. PacBell’s response indicates that it will produce documents in response to the Request. Plaintiff indicates no such documents have been produced. (See Am.SS at 34:11-12, 19-21.) The Court can find nothing in PacBell’s opposition papers addressing this Request.

C. The Parties’ Respective Requests for Sanctions are Denied

The parties each request sanctions against the other. Each of the statutes on which the parties rely provide for the imposition of sanctions “against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response....” (Code Civ. Proc., § 2030.300 (d); see also Code Civ. Proc., § 2031.310 (h).) Based on the mixed nature of the Court’s ruling, the Court finds neither that Plaintiff unsuccessfully made the motion, nor that PacBell unsuccessfully opposed it. As a result, each of the parties’ requests for sanctions is DENIED.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

Ptff/Pet: Brumbaugh, Allen
Def/Res: Appaloosa Road Community Service District

Atty: Axelrod, David L
Atty: Calaveras County Counsel

TENTATIVE RULING: Respondent Appaloosa Road Community Services District demurs, pursuant to Code of Civil Procedure section 430.10 (e), to Petitioner's first amended petition for writ of mandamus (FAP) on the grounds that Petitioner fails to allege facts sufficient to state a cause of action. Respondent further demurs to the "purported claim for relief for breach of the Brown Act...on the ground that it fails to state facts sufficient to constitute a cause of action, in that Petitioner's claim is not timely and fails to allege facts constituting a breach of the Brown Act's statutory provisions." (See Demurrer at 2:21-24.)

A party may demurrer to a petition, brought under Code of Civil Procedure section 1085, for writ of mandate (Code Civ. Proc. §1089.) In ruling on a demurrer, the Court must accept as true all allegations of fact contained in the petition. (Sheehan v. San Francisco 49ers, Ltd. (2009) 45 Cal.4th 992, 998.) The Court must also accept as true facts that may be inferred from those expressly alleged. (Cundiff v. GTE Cal., Inc. (2002) 101 Cal.App.4th 1395, 1405.) The Court may also consider as grounds for a demurrer any matter that is judicially noticeable under Evidence Code sections 451 or 452. (Code. Civ. Proc. § 430.30, subd. (a).) "A demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual allegations in the [pleading]; the question of [petitioner's] ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court." (Comm. on Children's Television, Inc. v. Gen. Foods Corp. (1983) 35 Cal.3d 197, 213 14.) While all material facts properly pleaded, and factual inferences therefrom are presumed true, contentions, deductions or conclusions of fact or law are not. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) In reviewing a demurrer, the Court must "construe the allegations of a [petition] liberally in favor of the pleader." (Skopp v. Weaver (1976) 16 Cal.3d 432, 438.) A general demurrer will also lie "where the [petition] has included allegations that clearly disclose some defense or bar to recovery." (Cryolife, Inc. v. Super. Ct. (2003) 110 Cal.App.4th 1145, 1152.) Finally, a demurrer may only be sustained if the petition fails to state a cause of action under any possible legal theory. (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 810.)

Respondent's request for judicial notice is GRANTED. The Court takes judicial notice of the exhibits attached to the original Petition filed in this action, but not for the truth of the matters set forth therein. (Evid. Code, §452, subd. (d).)

Respondent first argues that the Petition was not timely filed pursuant to the requirements of Government Code section 54960.1. (See Support Memorandum of Points and Authorities (Support Memo) at 6:23-7:6.)

First, the matters properly before the Court on this demurrer do not clearly disclose facts from which the Court can conclude that the action is time barred. (Cryolife, Inc. v. Super. Ct., supra, 119 Cal.App.4th at 1152.) Respondent cites to a letter attached as Exhibit E to the original Petition. As noted herein above, the Court takes judicial notice of the letter, but not for the truth of the matters set forth therein. As a result, the letter is insufficient to establish that Petitioner submitted a letter to Respondent dated November 20, 2020. Because Respondent's argument is premised on Petitioners having submitted said November 20, 2020 letter, the argument fails. (See Ion Equipment Corp. v. Nelson (1980) 110 Cal.App.3d 868, 881 ["[t]he purpose of a general demurrer is to determine the sufficiency of the complaint and the court should only rule on matters disclosed in that pleading"], superseded by statute on other grounds as reported in Hart v. TWC Product & Technology LLC (March 17, 2021) 2021 U.S. Dist. LEXIS 52683 at *8.) Second, even if the fact of the November 20, 2020, was properly before the Court, that letter itself is not. Respondent's argument fails because the matters properly before the Court do not establish that Petitioner's attorney's letter and the purported November 20, 2020 letter constitute identical written demands to cure and correct pursuant to Government Code section 54960.1 (b). Finally, the argument fails because Respondent provides no authority for the proposition that a party is barred from submitting two written demands to cure and correct a single purported violation of the Brown Act.

Respondent next asserts that "[t]here was no violation of the Brown Act by [Respondent's] Board, and Petitioner has not properly pled one." (Support Memo at 9:26-27.)

"A writ of mandate may be issued by any court to any inferior tribunal, corporation, board, or person, to compel the performance of an act which the law specially enjoins, as a duty resulting from an office, trust, or station, or to compel the admission of a party to the use and enjoyment of a right or office to which the party is entitled, and from which

the party is unlawfully precluded by that inferior tribunal, corporation, board, or person.” (Code Civ. Proc. §1085.)

Petitioner’s prayer for a writ of mandate is based exclusively on allegations that Respondent violated Government Code section 54954.6. (See FAP at ¶¶ 5-13, 19, and p.11:17-21.) The documents incorporated into the FAP as exhibits reinforce this conclusion. (See Petition at Exh. E, FAP at ¶ 16.)

The parties are in accord that all of Respondent’s acts that are the subject of the FAP relate to the adoption of a special tax, as opposed to a general tax or increased assessment. (See FAP at 11:5-8, Support Memo at 8:13, Opposition at 5:19-21.) The Court finds that, by its plain language, Government Code section 54954.6 applies only to general taxes and assessments, and not to special taxes as defined by the California Constitution, Article XIII C, section 1, subdivision (d). Petitioner presents no authority extending the provisions of 54954.6 to the adoption of special taxes.

Based on the foregoing, the FAP fails to identify “an act which the law specially enjoins, as a duty resulting from an office, trust, or station” which Respondent has failed to undertake, or “the use and enjoyment of a right or office to which [Petitioner] is entitled, and from which [Petitioner] is unlawfully precluded by [Respondent].” (Code Civ. Proc. §1085.)

Petitioner argues that even if the foregoing were true, “Respondent fails to explain why the notice requirement [sic] of other statutory and constitutional provisions do not apply with these circumstances.” (Opposition at 6:2-4.) Petitioner does not, however, cite to any allegation in the FAP that Respondent violated any such “notice requirement of other statutory or constitutional provisions.” (Id. at 6:2-8:16.) The remainder of Petitioner’s arguments cite to broad sections of code and entire articles of the California constitution. (See id. at 6:4-8 [citing “the balance of the Brown Act, Government Code §§ 54950, et seq.” and “California Constitution, Article XIII C and D”].) Petitioner’s reference to “other statutory or constitutional provisions” and his citations are too broad and abstract to permit the Court to identify factual allegations in the FAP that would support Petitioner’s prayer for a writ of mandate pursuant to this argument.

For the foregoing reasons, Respondent’s demurrer is SUSTAINED.

Generally, it is an abuse of discretion for a court to deny leave to amend where there is any reasonable possibility that a Petitioner can state a good cause of action. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) However, the pleading party bears the burden of showing such reasonable possibility. (Ibid.) The Court finds a reasonable possibility that Petitioner can state a good cause of action based on Petitioner’s suggestion that “notice requirement[s] of other statutory and constitutional provisions” may apply. For this reason, the demurrer is sustained with 10 days’ leave to amend.

The clerk shall provide notice of this ruling to the parties forthwith. Respondent to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

9:00 AM 21CV45171 OSC for TRO and Preliminary Injunction

02/09/2021

Ptff/Pet: Brumbaugh, Allen

Atty: Axelrod, David L

Def/Res: Appaloosa Road Community Service District

Atty: Calaveras County Counsel

TENTATIVE RULING: Petitioner’s application for a temporary restraining order and stay, based on the allegations in the First Amended Petition, is MOOT based on the Court’s ruling sustaining Respondent’s Demurrer to the First Amended Petition.

The clerk shall provide notice of this ruling to the parties forthwith. Respondent to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.